

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Case No.: 23-07

August 8, 2023

TIR AUTO TRANSPORT LLC

Complainant

vs.

V&S BROTHERS INC
V&S CARGO INC

Respondents

VERIFIED COMPLAINT



TIR AUTO TRANSPORT LLC, (hereinafter “TIR AUTO”), by its attorney, Garry Pogil, complaining of the Respondents, V&S BROTHERS INC (hereinafter “V&S BROTHERS”) and V&S CARGO INC (hereinafter “V&S CARGO”) as follows:

PARTIES

TIR AUTO is in the business of buying and shipping vehicles all over the world, having a principal place of business in Tiraspol, Moldova, 133 K Marx St, Apt. 121.

V&S CARGO is a corporation registered in the State of New Jersey, having the following principal place of business: 395 Route 34, Matawan, NJ 07747. This company’s FMC license number is 028326.

V&S BROTHERS INC is a registered used-car dealer and freight forwarding Non-Vessel-Operating Common Carrier company, having the same location as V&S CARGO.

V&S CARGO is an agent of V&S BROTHERS with respect to all aspects of all shipping related transactions that are the subject of this Complaint. For example, in the year 2017, TIR

entered into a “forwarding contract” with V&S BROTHERS, and V&S CARGO appears as shipper on the master bills of lading.

JURISDICTION

FMC has subject matter jurisdiction over the claims in this action as the above-captioned matter involves contracts for carriage of goods by sea, 46 U.S.C.S. 30701, and the Shipping Act of 1984, 46 U.S.C.S. 40101, et Seq.

STATEMENT OF THE FACTUAL ALLEGATIONS

1. The practice complained of — that the Respondents engaged on a customary basis — is not following shipping instructions and not releasing fully-paid-for containers for the purpose of seeking to satisfy purported debt completely unrelated to such containers. Such practice is contrary to the express terms of the forwarding contract between the parties, and such was not delineated in any shipping document, such as any House Bill of Lading, which V&S failed to issue.

2. The following containers were sent to the country of Georgia during the year 2022 — which was contrary to TIR AUTO’s instructions to send them to Romania — upon information and belief, the source of such being an email sent on May 2, 2022, this was done for the purpose of collecting a purported old debt not connected to any of these containers:

MRKU3290946, TGHU8008577, TGHU6580860, MRKU5403656, HASU4244254, MSKU8293256, TEMU7858825, CAAU5707438, HASU4670199, MSDU8121992, MSMU7193119.

3. Respondents have refused to provide TIR AUTO with detailed accounting and have denied access to TIR AUTO’s online account.

4. As a result of the foregoing, TIR AUTO could not operate for approximately six months and was forced to find other means to deliver these containers from Georgia to its intended destination in Moldova, sustaining approximately \$90,000 USD in damages. An additional measure of damages in connection with the above containers is predicated on the fact that there is approximately an \$80,000 USD difference between shipping such from Romania to Moldova and from Georgia to Moldova.

Romanian containers

5. Similar to the above-described Georgia containers, Respondents are refusing to release the following containers currently located in Romania since April of 2023—which are fully paid for—alleging a purported old debt not connected to such containers. On May 3, 2023, Respondents falsely stated that these Romanian containers are not fully paid for; however, as with the Georgian containers, Respondents have refused to provide any accounting in connection with such and blocked TIR AUTO's access to their transactions/accounting history.

CLHU8977548, UACU5608808, GATU8686323, MRKU5978917, TGHU9846825.

Failure to follow in-land freight instructions:

6. The following is just a few examples:

7. On December 5, 2022, TIR AUTO instructed the Respondents to transport the vehicle (VIN# ending in 410122, KIA Optima), for which TIR AUTO fully paid, from the auction in Florida to the warehouse in Georgia. However, inexplicably and without TIR AUTO's consent, the Respondents transported this vehicle to New Jersey, creating a much greater expense for TIR AUTO. TIR AUTO would then be forced to pay these charges because the Respondents said they would not release unrelated containers until these charges were paid.

8. On November 22, 2022, TIR AUTO instructed the Respondents to transport the vehicle (VIN# ending in 23963, 2008 Toyota Highlander Hybrid Limited) from the auction to the warehouse in Georgina. However, inexplicably and without TIR AUTO's consent, the Respondents transported this vehicle to New Jersey. This and other such invoices contained an inexplicable \$200 fee to which TIR AUTO never consented but had no choice but to pay.

Unidentified charges and inflated invoices

9. TIR AUTO began to notice unidentified charges, for example, charges characterized as simply "fee" appearing in invoices. The Respondents did not explain the nature of such charges — they threatened not to release cargo until these charges were paid.

10. Increasing international freight rates without providing an explanation or notice of such. For example, in one instance, TIR AUTO was charged \$1,000 for transport from New Jersey to Romania of one container containing one vehicle. However, in another shipment from New Jersey to Romania, containing a similar vehicle, TIR AUTO was charged \$1,350. Such inflated prices were present with respect to the 5 subject containers in Romania. The Respondents' practice with respect to this behavior was to then condition the release of other containers on payment of these inflated invoices.

CAUSE OF ACTION-ALL RESPONDENTS

(Violation of Section 41102(c) of the Shipping Act)

11. Complainant repeats paragraphs 1 to 10 above.

12. Respondents violated Section 41102(c) of the Shipping Act in that such respondents failed to establish, observe, and enforce just reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivery of property by failing to follow shipping instructions;

by inflating invoices and conditioning the release of cargo upon payment of such; by conditioning the release of cargo on payment of purportedly old debt unrelated to any cargo being held; by failing to release cargo that was fully paid for, which caused an increase in the demurrage charges; and by failing to provide timely, accurate and complete accounting.

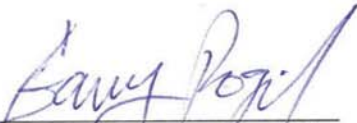
DAMAGES

As a direct result of the foregoing, Complainant is seeking actual and consequential damages, including loss of business to TIR AUTO, in the amount of \$500,000.

WHEREFORE:

- a. Complainant is not requesting an oral hearing.
- b. Complainant is seeking reparations in the amount as indicated under the Damages section of this Complaint.
- c. Any other relief that the Commission deems just and proper.

by:



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VERIFICATION

Iurii Chirianov, being duly sworn, states that he is the President of TIR AUTO (Complainant), and that the foregoing Complaint is true to his own knowledge, except as to matters herein stated to be alleged on information and belief. As to the matters stated to be alleged on information and belief, Complainant believes them to be true.

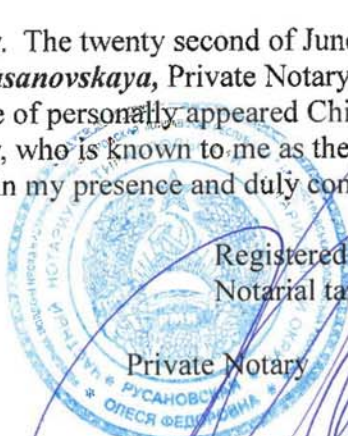


Iurii Chirianov

Subscribed and sworn to before me this 22 day of June, 2023

Tiraspol city. The twenty second of June two thousand twenty three.

I, **Olesya Rusanovskaya**, Private Notary of Tiraspol Notarial District, certify the authenticity of the signature of personally appeared Chirianov Iurii, resident at: ap. 121, 133 Karl Marx str., Tiraspol city, who is known to me as the person mentioned in the present document, who signed it in person in my presence and duly confirmed the document drafting. The signatory is identified.



Registered under No. 14/16- *3148*
Notarial tariff in the amount of 72.50 rubles
Private Notary
O. Rusanovskaya
